

NEWS

Can Pueblo police track your car? What the city's ALPR policy says



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Key Points

Automated license plate readers (ALPRs) are high-speed camera systems that automatically photograph passing vehicle license plates.

Police argue ALPRs help solve crimes, while activists raise surveillance and misuse concerns.

Pueblo police policy outlines specific authorized uses, such as finding stolen cars and missing persons.

The policy also prohibits using ALPRs for personal reasons, immigration enforcement, or monitoring protected groups.

For weeks, Pueblo City Council meetings have been a hotbed of arguments for and against automatic license plate readers (ALPR).

Pueblo Police Department representatives have argued that the high-speed camera systems that automatically photograph passing vehicle license plates are needed to prevent and solve crimes, while activists have raised concerns about the creation of a surveillance state and potential misuse by bad actors.

During an Oct. 5 Pueblo City Council work session, Pueblo Police Chief Chris Noeller gave a presentation on the department's current ALPR policy. He also shared what he believed to be benefits of using ALPRs in Pueblo.

"They assist in real-time crime detection, locating stolen vehicles, fugitives and missing persons," Noeller said. "ALPR complements other systems like ShotSpotter, cameras and

DFR (Drone as First Responder). When used together, they increase efficiency and the likelihood for a successful case."

FindingFlock.com, a public database that tracks ALPR cameras across the United States, has identified 93 ALPR camera systems operated by public and private entities in Pueblo, giving the city the fourth-highest number of ALPR camera systems among the 45 Colorado cities indexed in the database.

That's about 1.6 systems per square mile and 3.4% of the Colorado cameras documented.

What can ALPR systems be used for in Pueblo?

Under Pueblo PD Directive 26-2, police are authorized to use ALPR camera systems to identify or locate vehicles that are stolen, wanted or have fraudulently displayed plates.

The camera systems also may be used to locate individuals who are "missing, abducted, endangered or at-risk," according to Noeller's presentation.

Other authorized uses include addressing documented threats, supporting authorized investigations, responding to lawful process, evidence preservation, record processing, system audits, approved training, and testing. Any changes to the list of authorized uses must be approved by the mayor.

What ALPR uses are prohibited in Pueblo?

The department's directive governing ALPRs prohibits their use for personal or third-party interest, protected status or activity, civil immigration enforcement, generalized monitoring, credential or data misuse, and unapproved capabilities. Here is what each prohibition means, according to Noeller's presentation.

Personal or third-party interest: Police are not allowed to conduct searches of plates, vehicles, or individuals for "personal reasons," "curiosity," or "entertainment."

Prohibitions extend to searches conducted on behalf of friends, family members, private employers, businesses, landlords, and other unauthorized individuals.

Protected status or activity: Protected statuses and activities that cannot be identified, monitored or listed by police using ALPR systems include "race, ethnicity, national origin, religion, disability, sex, sexual orientation, gender identity, political viewpoint, journalism, or other protected status or activity."

Civil immigration enforcement: Use of ALPR systems for federal immigration enforcement requires federal or state authorization, "a court-issued subpoena, warrant, or order."

Generalized monitoring: "Generalized, speculative, open-ended" searches of an individual's travel, vehicle association and patterns are prohibited unless there is a documented public safety or criminal purpose.

Credential or data misuse: Sharing or copying of data obtained by ALPR systems to unauthorized recipients is prohibited. This includes prohibitions on copying to personal devices, accounts, unapproved messaging platforms and other media.

Unapproved capabilities: Written approval from the Chief of Police or a designee is required before individuals can enable or approve capabilities like audio collection, automated association analysis, expanded vehicle profiling, facial recognition, model training, personal identification, predictive scoring, secondary data use, a new integration, or other sharing function.

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